

STATE OF MICHIGAN
IN THE COURT OF APPEALS

ANDREW JAMES PIGORS,

Plaintiff-Appellant,

v Court of Appeals No. 366810

Muskegon County Circuit Court

Case No. 2024-001507-DC

Related PPO Case No. 2023-5907-PP

EMILY A. WATSON,

Defendant-Appellee.

Hon. Jenny L. McNeill, Presiding

**EMERGENCY MOTION FOR IMMEDIATE CONSIDERATION AND FOR TEMPORARY RELIEF
PENDING APPEAL**

(Reinstatement of Parenting Time and Stay of Ex Parte Suspension and Related Orders)

Plaintiff-Appellant Andrew James Pigors ("Father"), in propria persona, moves this Court under MCL 7.205(F), MCR 7.209, and its inherent authority for immediate consideration of his Application for Leave to Appeal and Brief on Appeal (COA No. 366810) and for narrowly tailored temporary relief pending appeal, stating:

I. RELIEF REQUESTED

Appellant requests that this Court:

1. Immediately reinstate ordinary parenting time under the last non-suspensive parenting-time order (the 50/50 temporary order in effect from May 5, 2024 through July 17, 2025, or in the alternative, the 79-overnight order);
2. Stay the effect and enforcement of the August 6-8, 2025 ex parte order suspending all parenting time, and any continuations, pending this Court's decision on the application and, if granted, on the appeal;
3. Stay all pending contempt proceedings in Case No. 2023-5907-PP that are premised on parenting-time logistics communications, pending this Court's review of the PPO/custody interaction issues;

4. Alternatively, order interim parenting time on a graduated schedule designed to prevent further erosion of the parent-child relationship while safeguarding L.D.W.; and
5. Grant any further or different temporary relief this Court deems just.

II. GROUNDS FOR IMMEDIATE CONSIDERATION

Immediate consideration is warranted because:

1. Irreversible harm is compounding daily. The August 6-8, 2025 ex parte suspension and its continuation have eliminated all contact between Father and L.D.W. for over 230 days, with no evidentiary hearing producing best-interest findings. Each additional week of enforced separation entrenches an unlawful status quo and inflicts non-recoverable harm to the parent-child bond. Research consistently shows that prolonged involuntary separation during early childhood causes developmental and attachment damage that no amount of future "make-up time" can fully remediate. L.D.W. is only three years old.
2. The ex parte suspension rests on structural legal errors. The suspension was granted on: (a) an unsworn, unverified motion lacking specific, child-focused "immediate and irreparable" harm allegations, contrary to MCR 3.207(B)(1); (b) an unauthenticated "second" mental-health evaluation that Father never underwent while the court-ordered HealthWest evaluation -- finding no safety risk -- was sidelined; and (c) no evidentiary hearing for 90 days (4.3x the 21-day limit under MCR 3.207(B)(6)).
3. The trial court has closed the door to relief below. The trial court has indicated on the record that it will not consider further motions from Father ("Do not file any more. I will not look at it.") and has imposed a filing bond without a vexatious-litigant finding, effectively closing the trial-court avenue for relief and making appellate intervention the only realistic route to protect Father's rights and L.D.W.'s relationship with his father.
4. New evidence reveals off-record coordination and prejudgment. Since the ex parte suspension, new discovered evidence has emerged:
 - Rusco Ex Parte Warrant Email (March 3, 2025): Judge McNeill's secretary emailed prosecutor Jan Hooker requesting a warrant against Father -- CC'ing defense counsel only after the prosecutor. This Canon 3(B)(7) violation demonstrates the court apparatus was coordinating prosecution outside the adversarial process.
 - Martini "Don't Speak" Email (February 28, 2025): Father's appointed counsel instructed him not to speak at a hearing because "Judge McNeil [sic] is not in a good mood today" and "she knows there is nothing substantive in the motion." This reveals prejudgment -- the outcome was decided before the hearing began.
 - HealthWest Off-Record Coordination (October 29, 2025): Rusco contacted clinicians directly and arranged subpoenas via email, bypassing formal court filing -- another Canon 3(B)(7) violation that compromises the independence of clinical testimony.
 - The 7-Day HealthWest Flip: September 4, 2025: clean baseline (Mitchell/DeAugustine). September 11, 2025: no baseline (DeAugustine/Mitchell).

2025: "Rule-out Delusional Disorder" (Gansen) -- with the clinician admitting it was "difficult to definitively assert whether concerns are factual or delusional." A 7-day onset of Delusional Disorder is clinically implausible.

5. Amended court rules demand intervention. The case sits at the intersection of newly amended ex parte evidentiary-hearing rules (MCR 3.207, MCR 3.210, effective September 1, 2025) and the Child Custody Act protections. Delay in appellate review risks normalizing practices that the new rules were expressly designed to prevent.

Without interim relief, Father will continue to suffer complete loss of parenting time based on untested allegations and unauthenticated evidence, and L.D.W. will continue to be deprived of his father's presence with lasting developmental and relational consequences.

III. LEGAL STANDARDS FOR TEMPORARY RELIEF

Under MCR 7.205(F)(2), this Court may grant immediate consideration when an order will have significant effects within a short time frame. Under MCR 7.209 and its inherent authority, this Court may stay enforcement of trial-court orders and grant other temporary relief to preserve the status quo and prevent irreparable harm while an application is pending.

In deciding whether to grant interim relief, this Court considers:

1. Likelihood of success on the merits;
2. Irreparable harm to the movant absent relief;
3. Harm to the opposing party or the child if relief is granted; and
4. Public interest and systemic concerns (including adherence to court rules, statutory standards, and due process).

In the child-custody context, these factors are evaluated through the lens of the Child Custody Act presumption favoring parent-child relationships and the overarching "best interests of the child" standard.

IV. APPLICATION OF THE FACTORS

A. Likelihood of Success on the Merits

As detailed in the Brief on Appeal (incorporated by reference), Appellant is likely to succeed on at least five independent grounds:

1. Ex Parte Procedural Violations. The August 6-8, 2025 ex parte suspension violated MCR 3.207(B) and the 2025 amendments requiring an evidentiary hearing before changing an established custodial environment. There were no verified allegations of immediate and irreparable harm, no prompt evidentiary hearing (90-day delay vs. 21-day requirement), and no best-interest findings.
2. Evidentiary Framework Errors. The trial court unlawfully discounted the court-ordered HealthW

evaluation (September 4, 2025 clean baseline) while relying on an unauthenticated "second" evaluation Father never underwent, contrary to MRE 901, 702, and 703.

3. Suppression of Defense Evidence. The court excluded Father's evidence (HealthWest report, AppClo logs, police clarifications, recordings), blocked motion practice, and issued orders without statutory findings depriving Father of a meaningful opportunity to be heard in violation of *Troxel v Granville*, 530 US 57, 65-66 (2000), and *In re Sanders*, 495 Mich 394, 404-412; 852 NW2d 524 (2014).

4. PPO Weaponization. PPO contempt proceedings were used to ratchet up custody and parenting-time restrictions outside the Child Custody Act framework, contrary to *Hunter v Hunter*, 484 Mich 247, 265-266; 771 NW2d 694 (2009), and MCR 3.708, while similar conduct by the other parent went unaddressed.

5. Judicial Bias. The Rusco warrant email, the Martini prejudgment email, off-record clinician coordination on-record hostility, and systematic exclusion of Father's evidence collectively establish an appearance of bias and probability of actual bias under MCR 2.003(C), *Cain v Dep't of Corrections*, 451 Mich 470, 497; 552 NW2d 210 (1996), and *Caperton v A.T. Massey Coal Co*, 556 US 868, 877-878 (2009).

These are not close calls at the margins of discretion; they are structural errors that directly implicate statutory and constitutional protections.

B. Irreparable Harm Absent Relief

The ongoing total suspension of parenting time causes irreparable harm in multiple ways:

- The parent-child relationship deteriorates with each week of forced separation; L.D.W. is three years old and in a critical developmental window;
- L.D.W.'s perception of Father is being shaped by absence and by a narrative of risk unsupported by test evidence;
- The longer the separation persists, the more the unlawful "status quo" can be invoked to oppose reinstatement;
- Father has already lost two jobs and two homes as a direct consequence of the court's enforcement trajectory;
- Father has served 59 days in jail -- every additional day of separation compounds the constitutional injury.

No later award of make-up parenting time can fully restore the lost months of ordinary, developmental contact during a formative period of L.D.W.'s life.

C. Harm to Appellee or the Child if Interim Relief Is Granted

Interim relief can be tailored to minimize risk, if any, while restoring contact:

- Parenting time can be reinstated under the last non-suspensive order (which the court previously deemed safe for 438 consecutive days);
- Exchanges can be conducted at neutral locations or via third-party supervisors;
- Communication rules can be clarified to respect PPO boundaries while permitting necessary logistics.

There is no clear and convincing evidence that ordinary parenting time endangers L.D.W.'s physical, mental,

or emotional health. If such evidence existed, the court would have produced it in a proper evidentiary hearing. Instead:

- The court operated 438 days of 50/50 custody without incident;
- The HealthWest September 4, 2025 evaluation -- the only court-ordered evaluation Father actually completed -- found no safety basis to suspend contact; and
- The 7-day "Rule-out Delusional Disorder" flip is speculative, with the clinician acknowledging inability to distinguish factual concerns from delusional ones.

D. Public Interest and Systemic Concerns

Granting interim relief promotes:

- Adherence to MCR 3.207 and MCR 3.210's safeguards against casual use of ex parte orders that alter custodial environments;
- Proper application of the Child Custody Act's presumption favoring parent-child contact;
- Meaningful due-process protections for self-represented litigants in high-stakes domestic cases;
- Public confidence that custody outcomes will not be driven by untested ex parte narratives, unauthenticated documents, off-record coordination between court staff and prosecutors, or explicit hostility to a party's attempts to seek relief; and
- Judicial accountability -- the newly discovered Rusco emails and Martini prejudgment communications demand prompt appellate oversight to protect the integrity of the tribunal.

V. REQUESTED TEMPORARY ORDER

Appellant asks this Court to enter an order providing that:

1. The August 6-8, 2025 ex parte order suspending all parenting time, and any continuations of that suspension, are STAYED pending resolution of this application and, if granted, the appeal.
2. The last non-suspensive parenting-time order is reinstated as an interim order, subject to any narrow safety conditions the Court deems necessary (e.g., neutral exchange locations, clarified communication rules consistent with any PPO in effect).
3. The trial court may not impose additional contempt sanctions based on alleged PPO violations that are premised solely on parenting-time logistics communications occurring in good-faith attempts to follow the parenting-time order, pending this Court's review of the PPO/custody interaction issues.
4. The trial court shall promptly transmit any transcripts or records this Court requests to expedite review.
5. In the alternative, if this Court determines that immediate reinstatement of the full prior parenting-time schedule is not appropriate pending full briefing, Appellant requests a graduated interim parenting schedule beginning with supervised visits within 14 days of this order, expanding to unsupervised visits within 30 days absent documented safety concerns, to prevent further deterioration of the parent-child relationship during

appellate proceedings.

VI. CONCLUSION

For the reasons above, Appellant respectfully requests that this Court:

- GRANT immediate consideration of the Application for Leave to Appeal and Brief on Appeal;
- ENTER temporary relief reinstating parenting time and staying the ex parte suspension and related orders;
- STAY pending contempt proceedings based on parenting-time communications; and
- GRANT such further or different relief as justice requires.

Every day that passes without relief is a day L.D.W. loses with his father -- a day that cannot be returned. The legal errors are clear. The harm is ongoing. The trial court has closed its doors. This Court is the last avenue for timely relief.

Respectfully submitted,

Dated: _____

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VERIFICATION

I, Andrew James Pigors, declare under penalty of perjury under the laws of the State of Michigan that the factual statements in this Emergency Motion for Immediate Consideration are true to the best of my knowledge, information, and belief.

Dated: _____

ANDREW JAMES PIGORS

CERTIFICATE OF SERVICE

I, Andrew James Pigors, certify that on _____, 2026, I served a true copy of this Emergency Motion for Immediate Consideration and for Temporary Relief Pending Appeal on:

Emily A. Watson

Defendant-Appellee

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via first-class U.S. Mail, postage prepaid.

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